

M/s Bhadohi Hotels Ltd. v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 May 2023 · 2023:AHC:110583-DB · WRIT - C No. - 20484 of 2011 ·
Writ dismissed following coordinate-bench rejection of additional-security claim.

HEADNOTE

A hotel consumer's writ against a demand of additional security was dismissed because a coordinate bench had already rejected the same claim in Writ C No. 30898 of 2016 (3 March 2023). An earlier 2011 listing order had observed that section 47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P. Electricity Supply Code, 2005, and had continued interim protection subject to security other than cash or bank guarantee.

FACTUAL SUMMARY

M/s Bhadohi Hotels Ltd. challenged Purvanchal Vidyut Vitran Nigam Ltd.'s demand of additional security. In April 2011 a Division Bench treated the dispute as not a recovery matter, observed that section 47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P. Electricity Supply Code, 2005, and continued interim protection as in other pending additional-security writs, subject to non-cash, non-bank-guarantee security. The consumer said a prepaid scheme would avoid additional security; the licensee said no prepaid meter was available in the State.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security

HOLDING

The writ challenging additional security — a subject the Court had earlier said must be read under section 47 of the Electricity Act, 2003 with clause 4.20 of the U.P. Electricity Supply Code, 2005 — is dismissed in terms of the coordinate-bench judgment dated 3 March 2023 in Writ C No. 30898 of 2016, which had already rejected the consumer's claim. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Writ C No. 30898 of 2016</i> (Allahabad High Court, 3 March 2023)			1	Referred